



CHAPTER 41

An Act to amend the enactments relating to solicitors and for purposes connected therewith.

[17th May, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In subsection (3) of section two of the Act of 1941 (which relates to the annual contribution to the Compensation Fund to be paid by a solicitor on the issue to him of a practising certificate) for the words "a contribution of five pounds or such less sum as the Council may from time to time determine" there shall be substituted the words "a contribution of such sum not exceeding ten pounds as the Council may from time to time determine".

2.—(1) No person shall be admitted as a solicitor unless he has satisfied the Society that he has complied with such requirements as the Society may by regulations, made with the concurrence of the Lord Chancellor, the Lord Chief Justice, and the Master of the Rolls, prescribe with respect to—

- (a) service under articles of clerkship;
- (b) attendance at a course of legal education; and
- (c) the passing of examinations,

and unless the Society are also satisfied as to that person's moral fitness to be an officer of the Supreme Court:

Provided that this subsection and any regulations made thereunder shall have effect subject to the provisions of—

- (i) section twenty-two of the principal Act (which provides that the default of a solicitor in certain respects is not

to disqualify his articled clerk for admission as a solicitor);

- (ii) section thirty-five of the principal Act (which relates to the admission as solicitors of the Supreme Court of solicitors of certain other superior Courts); and
- (iii) subsection (3) of section twenty of the Justices of the Peace Act, 1949 (which relates to the admission as solicitors of certain persons who have served as assistant to a justices' clerk).

(2) Regulations under the foregoing subsection may make different provision for different circumstances and may include provision for the charging by the Society, and the application, of fees.

(3) Without prejudice to any provision of the Solicitors Acts or of this Act, the Society may by regulations made as aforesaid make provision with respect to the taking and retaining of articled clerks by solicitors and the conduct, duties and responsibilities towards one another of the parties to articles.

(4) The enactments mentioned in the First Schedule to this Act shall have effect subject to the amendments respectively specified in that Schedule, being amendments consequential upon the other provisions of this section.

(5) The enactments mentioned in Part I of the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Part of that Schedule.

(6) This section shall come into operation on such day as the Lord Chancellor may by order made by statutory instrument appoint.

Registrar of
solicitors.

3. The duties imposed by the Solicitors Acts on the registrar of solicitors and immediately before the commencement of this Act required by section one of the principal Act to be performed by the Society shall become the duties of the Society as such, and accordingly—

- (a) the said section one (which requires the said duties to be performed as aforesaid subject to a power of the Master of the Rolls to appoint another fit person to perform those duties) and paragraph (b) of the proviso to subsection (3) of section four of the Act of 1941 (which relates to the constitution of committees of the Council in the exercise of functions of the registrar) shall cease to have effect;
- (b) for any reference in the said Acts (other than in the said section one) to the registrar there shall be substituted a reference to the Society.

4.—(1) The Master of the Rolls may, if he thinks fit, from Admission time to time delegate to any judge of the High Court the duty of persons of admitting persons to be solicitors, and accordingly in section as solicitors. three of the principal Act (which relates to such admissions)—

- (a) in subsection (1), after the words "Master of the Rolls" in the second place where they occur there shall be inserted the words "or any judge of the High Court whom the Master of the Rolls may by writing under his hand have appointed to act for the time being on his behalf for that purpose", and for the word "he" there shall be substituted the words "the Master of the Rolls";
- (b) in subsection (2), after the words "Master of the Rolls" there shall be inserted the words "or by such a judge as aforesaid".

(2) In subsection (1) of section thirty-five of the principal Act (which provides that solicitors of certain overseas courts who have been in practice before such a court for not less than three years may on compliance with certain requirements be admitted as solicitors of the Supreme Court) after the word "may" there shall be inserted the words "and a solicitor of such a court who has for not less than three years served bona fide as a clerk to a solicitor in England may with the consent of the Council of the Society".

5.—(1) In subsection (1) of section thirty-seven of the principal Act (which, as substituted by section five of the Act of 1941, requires an applicant for a practising certificate to deliver a declaration in the form set out in the Second Schedule to the Act of 1941) for so much of paragraph (a) as precedes the proviso there shall be substituted the following—

- "(a) Not less than fourteen days before a solicitor applies for a practising certificate, he shall attend at the Society's Hall, either in person or by his agent, and deliver a written declaration in such form as the Society may by regulations, made with the concurrence of the Lord Chancellor, the Lord Chief Justice and the Master of the Rolls, prescribe—
 - (i) specifying the applicant's full name, place or places of business and date of admission; and
 - (ii) containing such other particulars as the Society may by such regulations as aforesaid prescribe; and
 - (iii) signed by the applicant personally":

(2) For subsection (3) of the said section thirty-seven (which requires the Society, after the expiration of fourteen days from the delivery of such a declaration as aforesaid, to deliver on

demand a practising certificate in the form set out in the Third Schedule to that Act if they are satisfied that the name of the applicant is on the roll) there shall be substituted the following—

“(3) Application for a practising certificate shall be made in person at the Society’s Hall either by the applicant or by his agent and, subject to the provisions of the next succeeding section, if the Society are satisfied that the name of the applicant is on the roll and that he is not for the time being suspended from practice and that the requirements of subsection (1) of this section have been complied with, they shall thereupon deliver a practising certificate in such form as the Society may by regulations made with the concurrence of the Lord Chancellor, the Lord Chief Justice and the Master of the Rolls prescribe.”

(3) In paragraph (c) of subsection (1) of section thirty-eight of the principal Act, as substituted by section ten of the Act of 1941 (which gives the Society a discretion in certain cases to refuse a practising certificate), after the words “having had his name” there shall be inserted the words “removed from or”.

(4) For paragraph (j) of subsection (1) of the said section thirty-eight there shall be substituted the following—

“(j) after having had given against him any judgment which involves the payment of moneys, not being a judgment—

(i) limited to the payment of costs; or

(ii) as to the whole effect of which upon him he is entitled to indemnity or relief from some other person; or

(iii) evidence of the satisfaction of which has been produced to the Society.”

(5) The Third Schedule to the principal Act and section six of, and the Second Schedule to, the Act of 1941 shall cease to have effect.

Dating and
expiry of
practising
certificates.

6.—(1) In subsection (1) of section forty-one of the principal Act (which makes provision as to the dating of practising certificates), for the words “between the fifteenth day of November and the sixteenth day of December” there shall be substituted the words “after the fifteenth day of November and before the sixteenth day of December”.

(2) Every practising certificate shall expire at the end of the fifteenth day of November next after it is issued:

Provided that where the name of any solicitor is removed from or struck off the roll, the practising certificate (if any) of that solicitor for the time being in force shall expire forthwith.

7.—(1) The making by the disciplinary committee or the court of an order suspending a solicitor from practice shall operate to suspend the practising certificate (if any) of that solicitor for the time being in force, and that suspension shall continue in operation until the certificate expires or the suspension is terminated by order of the Society or of the Master of the Rolls by virtue of the next following subsection.

Suspension
of practising
certificates.

(2) Where a solicitor's practising certificate is suspended under the foregoing subsection and the period of the solicitor's suspension from practice expires before the expiry of that certificate, subsections (2) and (3) of section twelve of the Act of 1941 (which provide for the termination of suspensions of practising certificates under section eleven of that Act or under section thirty-eight of the principal Act) shall apply in relation to that suspension of his certificate as they apply in relation to suspensions under the said sections eleven and thirty-eight.

(3) Where a solicitor's practising certificate has been suspended under subsection (1) of this section by reason of his suspension from practice, and the suspension of his practising certificate is terminated unconditionally by virtue of the last foregoing subsection, then, as respects any subsequent practising certificate, notwithstanding paragraph (c) of subsection (1) of the said section thirty-eight, that suspension from practice and the expiry of the period thereof shall cease to operate so as to require that solicitor to give the notice mentioned in that section of his intention to apply for that subsequent certificate or to vest in the Society any discretion with respect to the issue of that subsequent certificate.

(4) At any time while a practising certificate is suspended under the said section eleven or thirty-eight or under subsection (1) of this section, that certificate shall be deemed not to be in force for any of the purposes of the Solicitors Acts or this Act, and for the purposes of Part IV of the principal Act the person named in that certificate shall be deemed—

- (a) to be an unqualified person; and
- (b) not to be a duly certificated solicitor.

8.—(1) The disciplinary committee may, for the purpose of hearing and determining applications or complaints under any of the provisions of the Solicitors Acts, sit in two or more divisions and, for the purposes of the hearing and determination of, and the making of an order on, any such application or complaint by such a division, that division shall be deemed to be the committee.

Provisions
relating to
proceedings
before
disciplinary
committee
or court.

(2) The quorum of the disciplinary committee or a division thereof shall for all purposes be three:

Provided that the decision of the committee or division on an application or complaint may be announced by a single member thereof.

(3) In subsection (1) of section seven of the principal Act (which, among other things, requires an order made by the disciplinary committee to be signed by their chairman) after the word "Chairman" there shall be inserted the words "or by some other member of the Committee authorised by the Committee in that behalf".

(4) The proviso to subsection (1) of section six of the principal Act (which relates to the quorum of the disciplinary committee) and section two of the Act of 1939 (which provides that the disciplinary committee may sit in two or more divisions for the purposes of applications under Part I of the principal Act) shall cease to have effect.

(5) In section twelve of the Act of 1936 (which extends the time for instituting proceedings in respect of certain offences), after the words "proceedings in respect of" there shall be inserted the words "an offence under section forty-six of the principal Act (which relates to a person who, not having in force a practising certificate, pretends to be a solicitor) or".

(6) In the following provisions, that is to say—

- (a) section eight of the principal Act (which relates to appeals against certain orders of the disciplinary committee);
- (b) subsection (7) of section sixteen of the Act of 1941 (which relates to appeals against orders of the disciplinary committee under that section); and
- (c) paragraph 6 of the First Schedule to the Act of 1941 (which relates to applications to the High Court or to a judge thereof under that Schedule),

for any reference to rules or regulations made from time to time by the Master of the Rolls with the concurrence of the Lord Chancellor and the Lord Chief Justice or (in the case of difference) of one of them there shall be substituted a reference to rules of court:

Provided that any rules or regulations made by the Master of the Rolls as aforesaid and in force immediately before the commencement of this Act shall continue to have effect for the purposes of the provision in question until revoked by rules of court made by virtue of this section as if they were rules of court so made.

9.—(1) Where the name of any solicitor is removed from or struck off the roll or any solicitor is suspended from practice, that solicitor shall within twenty-one days of the material date satisfy the Council that he has made suitable arrangements for making available to his clients, or to some other solicitor or solicitors instructed by his clients or by himself—

- (a) all deeds, wills, documents constituting or evidencing the title to any property, papers, books of account, records, vouchers and other documents in his or his firm's possession or control, or relating to any trust of which he is sole trustee or co-trustee only with one or more of his partners, clerks or servants; and
- (b) all sums of money due from him or his firm to, or held by him or his firm on behalf of, his clients, or subject to any such trust as aforesaid;

and if he fails so to satisfy the Council, paragraphs 4 to 6 of the First Schedule to the Act of 1941 (which relate to the production or delivery of documents by, and to payments out of any banking account in the name of, certain solicitors) shall apply in relation to that solicitor notwithstanding that the Council have not reasonable ground for believing or are not satisfied that he has been guilty of any such dishonesty as is mentioned in section two of that Act.

(2) In this section the expression "the material date" means whichever is the latest of the following dates, that is to say—

- (a) the date when the order of the disciplinary committee or of the court by or in pursuance of which the solicitor's name is removed from or struck off the roll or the solicitor is suspended from practice is to take effect;
- (b) the last date on which an appeal against that order may be lodged;
- (c) the date on which any such appeal is dismissed or abandoned;

and the expressions "trust" and "trustee" have the same meanings as in the Act of 1941.

10.—(1) For the avoidance of doubt it is hereby declared that an application by any person to require a solicitor to answer allegations contained in an affidavit, whether that application is made to the disciplinary committee or to the High Court, may be treated as an application to strike the name of that solicitor off the roll on the grounds of the matters alleged; accordingly in paragraph (ii) of section nine of the principal Act (which relates to procedure upon applications to the High

Court) the words "or, as the case may be, that the solicitor do answer the allegations contained in the affidavit" shall be omitted.

(2) For the avoidance of doubt it is hereby declared that subsection (1) of section nine of the Act of 1936 (which requires the Society to enter on the roll a note of an order of the High Court or Court of Appeal that the name of a solicitor be removed from or struck off the roll) applies to all such orders by the High Court or Court of Appeal, and accordingly in that subsection the words "on an application made by any person under the principal Act" shall be omitted.

(3) Subsection (2) of section thirteen of the principal Act (which provides for the payment of a fee in certain cases where a name which has been removed from or struck off the roll is ordered to be replaced thereon) shall apply in all such cases, and accordingly in that subsection the words from the beginning to "section fifty-one of this Act" shall be omitted.

Proceedings
against
solicitors'
clerks who
are not
solicitors.

11.—(1) For paragraph (a) of subsection (1) of section sixteen of the Act of 1941 (which enables proceedings before the disciplinary committee to be taken against a solicitor's clerk who is not himself a solicitor) there shall be substituted the following:—

"(a) Where a person who is or was a clerk to a solicitor but is not himself a solicitor has been convicted—

(i) of larceny, embezzlement or fraudulent conversion; or

(ii) of any other criminal offence in respect of any money or property belonging to or held or controlled by the solicitor by whom he is or was employed or any client of that solicitor; or"

(2) At the end of the said section sixteen there shall be added the following subsection:—

"(11) For the purposes of this section—

(a) an order under Part I of the Criminal Justice Act, 1948, placing a person on probation or discharging him absolutely or conditionally shall, notwithstanding anything in section twelve of that Act, be deemed to be a conviction of the offence for which the order was made; and

(b) the death of a solicitor against whom an application or complaint might have been made to the disciplinary committee under any enactment shall not prevent an application being made by or on behalf of the Society to the disciplinary committee in respect of a person who was a clerk to that solicitor

but is not himself a solicitor, and who is alleged to have been a party to any act or default of that solicitor ”.

12. If—

- (a) in contravention of section seventeen of the principal Act, any solicitor has more than two articled clerks at the same time; or
- (b) in contravention of section eighteen of the principal Act, any solicitor takes or retains any articled clerk after he has ceased to practise as a solicitor or while the solicitor is employed as a clerk by another solicitor; or
- (c) in contravention of subsection (1) of section one of the Act of 1936, a solicitor who has not at any time been in continuous practice as a solicitor for a period of five years takes an articled clerk without the special leave in writing of the Society; or
- (d) a solicitor takes an articled clerk in contravention of a prohibition for the time being in force under section fourteen of the Act of 1941; or
- (e) any allegation is made to the Council as to the moral unfitness of an articled clerk to be an officer of the Supreme Court, and the Council, after inquiring into that allegation, are satisfied that the clerk is morally unfit to be such an officer,

Power of Society to discharge articles in certain cases.

the Society may of their own motion discharge the articles of any such articled clerk upon such terms, including terms as to return of premium, as they think fit.

13.—(1) For the purposes of the remuneration of a solicitor, his bill of costs may include costs payable in discharge of a liability properly incurred by the solicitor on behalf of the party to be charged with the bill (including counsel's fees) notwithstanding that those costs have not been paid before the delivery to that party of that bill:

Remuneration of solicitors.

Provided that—

- (a) those costs shall be described in the bill as not then paid;
- (b) if the bill is referred to taxation, the taxing officer shall not allow those costs unless they have been paid before the taxation is completed.

Order LXV rule 27 regulation (29A) of the Rules of the Supreme Court, 1883, and rule 4 of the Rules of the Supreme Court (No. 1) 1936 (which amends that regulation) are hereby revoked.

(2) For the purposes of the remuneration of a solicitor in respect of contentious business done by him, where that remuneration is not the subject of such an agreement as is mentioned in section fifty-nine of the principal Act, the solicitor's bill of costs

may at the option of the solicitor be for a gross sum instead of containing detailed items:

Provided that—

- (a) at any time before the service upon him of a writ or other originating process for the recovery of costs included in a gross sum bill, and before the expiration of three months from the date of the delivery to him of that bill, the party chargeable therewith may require the solicitor to deliver to him in lieu thereof a bill containing detailed items, and the gross sum bill shall thereupon be of no effect;
 - (b) where an action is commenced on a gross sum bill the court shall, if so requested by the party chargeable therewith before the expiration of one month from the service on that party of the writ or other originating process, order that the bill shall be taxed;
 - (c) if a gross sum bill is referred to taxation, whether under this subsection or otherwise, nothing in this subsection shall prejudice any rules of court with respect to taxation, and the solicitor shall furnish the taxing officer with such details of any of the costs covered by the bill as the taxing officer may require.
- (3) If, in the case of a solicitor's bill of costs for non-contentious business, not less than half of the amount of the bill before taxation consists of costs for which no scale charge is provided by an order for the time being in operation under section fifty-six of the principal Act, subsection (5) of section sixty-six of that Act (which provides that if on taxation of a bill one-sixth of the amount of the bill is taxed off, the solicitor shall pay the costs of taxation but otherwise the party chargeable shall pay those costs) shall have effect as if for the reference to one-sixth there were substituted a reference to one-fifth.
- (4) Except in relation to a bill of costs delivered before the commencement of this Act, in this section and in the principal Act—
- (a) the expression "contentious business" shall mean business done, whether as solicitor or advocate, in or for the purposes of proceedings begun before a court or before an arbitrator appointed under the Arbitration Act, 1950, not being business which falls within the definition of non-contentious or common form probate business contained in subsection (1) of section one hundred and seventy-five of the Supreme Court of Judicature (Consolidation) Act, 1925;
 - (b) the expression "non-contentious business" shall mean any business done as a solicitor which is not contentious business as defined by the foregoing paragraph;

and the definitions of the said expressions contained in subsection (1) of section eighty-one of the principal Act shall cease to have effect.

14. Section seventy-two of the principal Act (which relates to the qualifications for holding certain offices of solicitors who have been barristers) shall have effect, in relation to any appointment to such an office made after the commencement of this Act, as if for the words from "that period" onwards there were substituted the words "the period of enrolment of a solicitor who before admission was a barrister shall be deemed to include any period after his call to the bar in England during which he is, for the purposes of this section, recognised by the Society as having been, or certified by the Attorney-General as having in his opinion been, in practice or in employment as a barrister".

Qualification for office of solicitors who have been barristers.

15.—(1) In subsection (3) of section four of the Act of 1941 (which provides that committees of the Council may include persons who are not members of the Council), for paragraph (a) of the proviso there shall be substituted the following:—

Provisions as to Committees of Council and membership of Law Society.

"(a) at least one-half of the members of any committee (including the Chairman thereof) shall be members of the Council; and

(aa) if more than one-third of the members of any committee are not members of the Council, no resolution of that committee shall be duly passed unless a majority of the members of the Council present shall have voted in favour of it."

(2) In subsection (1) of section three of the Act of 1941 (which provides for compulsory membership of the Society in certain circumstances) for the words "the annual subscription payable for the time being by members of the Society" there shall be substituted the words "the annual subscription which is or would be payable by him under subsection (6) of this section as a member of the Society".

(3) In subsection (4) of the said section three (which enables non-practising solicitors to become members of the Society) for the words "the annual subscription in accordance with any bye-law or regulation of the Society" there shall be substituted the words "the annual subscription payable by him under subsection (6) of this section as a member of the Society".

(4) In subsection (7) of the said section three (which provides that a member of the Society whose name is removed from or struck off the roll by an order of the disciplinary committee under the disciplinary enactments shall thereupon cease to be a member) the words "by an order of the Disciplinary Committee under the disciplinary enactments" shall cease to have effect.

Council to act
on behalf of
Society.

16. All acts or regulations authorised or required to be done or made by the Society under or in pursuance of this Act or of any regulations made thereunder may be done or made on behalf of the Society by the Council.

Certain
powers to be
exercisable by
statutory
instrument.

17.—(1) The power conferred on the Treasury by paragraph (h) of subsection (2) of section four of the Solicitors Act, 1933, to prescribe revenues or funds for the purposes of that subsection (which exempts officers whose remuneration is defrayed out of certain funds from compliance with rules of the Council with respect to solicitors accounts) shall be exercisable from time to time by order made by statutory instrument.

(2) The powers to make rules conferred by section six of the principal Act and subsection (6) of section sixteen of the Act of 1941 (which relate to the procedure of the disciplinary committee) shall be exercisable by statutory instrument.

(3) For the removal of doubt, it is hereby declared that the power to make orders conferred by section fifty-six of the principal Act (which relates to the remuneration of solicitors in respect of non-contentious business) is exercisable by statutory instrument.

(4) The Statutory Instruments Act, 1946, shall apply to a statutory instrument containing such rules as are mentioned in subsection (2) of this section or such an order as is mentioned in the last foregoing subsection in like manner as if the rules or order had been made by a Minister of the Crown.

Interpretation.

18.—(1) In this Act—

“the principal Act” means the Solicitors Act, 1932;

“the Act of 1936” means the Solicitors Act, 1936;

“the Act of 1939” means the Solicitors (Disciplinary Committee) Act, 1939;

“the Act of 1941” means the Solicitors Act, 1941;

“the Solicitors Acts” means the Solicitors Acts, 1932 to 1950;

and, save where the context otherwise requires, expressions used both in this Act and in the principal Act have the same meanings as in the principal Act.

(2) Save where the context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as amended by or under any other enactment, including any enactment contained in this Act.

Citation,
repeals, com-
mencement
and extent.

19.—(1) This Act may be cited as the Solicitors (Amendment) Act, 1956.

(2) This Act and the Solicitors Acts, 1932 to 1950, may be cited together as the Solicitors Acts, 1932 to 1956.

(3) The enactments mentioned in Part II of the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Part of that Schedule.

(4) The provisions of this Act other than section two thereof shall come into operation on the first day of November nineteen hundred and fifty-six.

(5) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULES

Section 2.

FIRST SCHEDULE

CONSEQUENTIAL AMENDMENTS OF ENACTMENTS

1. In section three of the principal Act, for the words " a certificate of having passed the final examination provided for by this Act " there shall be substituted the words " a certificate that the Society is satisfied as required by subsection (1) of section two of the Solicitors (Amendment) Act, 1956 ".

2. In section twelve of the principal Act—

(a) for the words " any defect in his articles of clerkship, or in the registration thereof, or in his service thereunder, or " there shall be substituted the words " any failure to comply with any requirements with respect to service under articles of clerkship of regulations made under subsection (1) of section two of the Solicitors (Amendment) Act, 1956, which are applicable in his case, or any defect "; and

(b) for the words " articles, registration, service, admission or enrolment " there shall be substituted the words " failure or defect ".

3. In section twenty-two of the principal Act, for the words " required by this Act " there shall be substituted the words " required in his case by regulations made under subsection (1) of section two of the Solicitors (Amendment) Act, 1956 ".

4. For subsection (1) of section five of the Act of 1936 there shall be substituted the following—

" (1) If, at any time while a person is serving as an articled clerk to a solicitor, the Society are satisfied on the application either of the solicitor or of the clerk that the articles ought to be discharged, the Society may discharge the articles upon such terms, including terms as to return of premium, as they think fit ".

5. In subsection (3) of section twenty of the Justices of the Peace Act, 1949—

(a) for the words " paragraph (a) of section fourteen of the Solicitors Act, 1932 " there shall be substituted the words " regulations made under subsection (1) of section two of the Solicitors (Amendment) Act, 1956 ";

(b) in paragraph (b), for the words " the said Act " there shall be substituted the words " the said regulations ";

(c) in paragraph (d), for the words " the Solicitors Acts, 1932 to 1941 " there shall be substituted the words " the Solicitors Acts, 1932 to 1956 ".

SECOND SCHEDULE

Sections 2, 19.

ENACTMENTS REPEALED

PART I

Repeals under section two of this Act

Session and Chapter	Short Title	Extent of Repeal
22 & 23 Geo. 5. c. 37.	The Solicitors Act, 1932.	Sections fourteen to sixteen; subsection (2) of section eighteen; sections nineteen to twenty-one; section twenty-three; sections twenty-five to thirty-four; in section seventy-three, the words "articles of clerkship"; and the First and Second Schedules.
26 Geo. 5. & 1 Edw. 8. c. 35.	The Solicitors Act, 1936.	Subsection (2) of section one; sections two to four; subsection (2) of section five; and sections six to eight.
3 & 4 Geo. 6. c. 15.	The Solicitors (Emergency Provisions) Act, 1940.	Sections one, three and four; and in section eight the paragraphs commencing respectively with the words "The principal Act", "Solicitors", "The Law Society" and "Articles".
4 & 5 Geo. 6. c. 46.	The Solicitors Act, 1941.	In section fourteen, in subsection (1) the words from "notwithstanding" to "1936", subsection (3), and in subsection (4), the words from "and" onwards; and sections fifteen, twenty-five and twenty-six.

PART II

*Miscellaneous Repeals*2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
22 & 23 Geo. 5. c. 37.	The Solicitors Act, 1932.	Section one; the proviso to subsection (1) of section six; in paragraph (ii) of section nine, the words "or, as the case may be, that the solicitor do answer the allegations contained in the affidavit"; in subsection (2) of section thirteen, the words from the beginning to "fifty-one of this Act"; in subsection (1) of section eighty-one, the paragraphs commencing respectively with the words "contentious business" and "non-contentious business"; and the Third Schedule.
26 Geo. 5. & 1 Edw. 8. c. 35.	The Solicitors Act, 1936.	In subsection (1) of section nine the words "on an application made by any person under the principal Act".
2 & 3 Geo. 6. c. 110.	The Solicitors (Disciplinary Committee) Act, 1939.	Section two.
4 & 5 Geo. 6. c. 46.	The Solicitors Act, 1941.	In subsection (7) of section three the words from "by" to "enactments"; paragraph (b) of subsection (3) of section four; sections six and eight; the Second Schedule; and so much of the Third Schedule as reproduces subsection (3) of section thirty-seven of the principal Act.
12, 13 & 14 Geo. 6. c. 21.	The Solicitors, Public Notaries, &c. Act, 1949.	In subsection (2) of section one the words from "and any" onwards.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Solicitors Act, 1932	22 & 23 Geo. 5. c. 37.
Solicitors Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 35.
Solicitors (Disciplinary Committee) Act, 1939	2 & 3 Geo. 6. c. 110.
Solicitors Act, 1941	4 & 5 Geo. 6. c. 46.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Arbitration Act, 1950... ..	14 Geo. 6. c. 27.

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